

25VECV07210 25VECV07210

County: los-angeles

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Case Number: 25VECV07210 Hearing Date: September 15, 2026 Dept: I

25VECV07210 MILSAM, LLC v. 110

SUNSHINE SMOOTHIES, INC., et al.

September 15, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion for Attorney's Fees and Costs

I.

Background

This is a unlawful detainer action arising out of the written lease agreement between Plaintiff Milsam, LLC ("Plaintiff") and Defendants 110 Sunshine Smoothies, Inc. ("Sunshine"); Gholam Hossein, individually and d/b/a Qwench/Qwench Juice Bar ("Qwench"); Fariba Hossein, individually and d/b/a Qwench; Drnk Coffee + Tea Franchising, LLC ("DCT"); Kaur Juice Coffee + Tea, LLC ("Kaur"); and DOES 1 through 10 (collectively, "Defendants") for the renting out the property located at 4550-4578 Van Nuys Blvd., Sherman Oaks, CA 91403 (the "Premises"). On December 18, 2025, Plaintiff filed the operative Complaint against Defendants to recover the Premises.

On February 3, 2026, Defendants filed their Answer to the Complaint.

On June 16, 2026, a non-jury trial was held and judgment was entered for Plaintiff against Defendants for a total of \$169,571.16 consisting of: (1) \$71,758.52 in past due rent and (2) \$97,812.64

in holdover damages.

On June

22, 2026, Plaintiff filed a Memorandum of Costs. On August 10, 2026, Plaintiff filed the instant Motion for Attorney's Fees. Any opposition would have been due on September 1, 2026. To date, no opposition has been filed.

II. Discussion

Civil Code Section 1717,

subdivision (a) provides in pertinent part: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract . . . shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

One of the purposes behind section

1717 is to make otherwise unilateral attorney's fees provisions reciprocal as a matter of law. (ABF Capital Corp. v. Grove Properties Co. (2005) 126 Cal.App.4th 204, 217 ["Section 1717(a) is no default provision or gapfiller, subject to override by the parties. Rather, it represents a basic and fundamental policy choice by the state of California that nonreciprocal attorney's fees contractual provisions create reciprocal rights to such fees."].) The party seeking fees and costs "bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates." (ComputerXpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993, 1020.) In determining a reasonable attorney fee award, a court decides the "reasonable hours spent" on the case and multiplies the number by "the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) The result is called the "lodestar" figure. (Id.)

Reasonable attorneys' fees

are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to

render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys' experience and reputation, and other circumstances. (Id.)

Plaintiff moves for an order awarding \$28,748.00 in attorney's fees consisting of: (1) \$27,148.00 in attorney's fees incurred through July 2026 and (2) \$1,600.00 in fees incurred bringing the present motion.

Here, it is undisputed that Plaintiff is the prevailing party in this instant action. Specifically, judgment was entered in Plaintiff's favor against Defendants after the non-jury trial held on June 16, 2026. (Baez-Silva Decl., ¶¶, 16-17, Exs. B-C.) Furthermore, Plaintiff has shown entitlement to attorney's fees pursuant to the parties written lease agreement (the "Lease"). Paragraph 33(xv) of the Lease expressly states that: "In the event of any action or proceeding brought by either party against the other under this Lease, the prevailing party shall be entitled to recover for the fees of its attorneys in such action or proceeding, including costs of appeal, if any, in such amount as the court may adjudge reasonable as attorneys' fees...Wherever in this Lease the reference to attorney's fees or attorney's costs shall occur, the same may include fees billed by law clerks, paralegals and other persons not admitted to the Bar but employed by, and performing services under, the supervision of an attorney. The provisions of this subparagraph (xv) shall survive the expiration or earlier termination of this Lease and in the event any action or proceeding is instituted to recover possession of the Premises following the expiration or termination of this Lease, the provision contained in this subparagraph (xv) shall be applicable." (Id., ¶¶8-9, Ex. A.)

With respect to the reasonableness of the fees sought, Plaintiff seeks to recover attorney's fees for a total 67.87 hours Counsel Baez-Silva spent litigating this case from December 15, 2025 through July 7, 2026 at an hourly rate of \$400.00/hour. (Baez-Silva Decl., ¶26, Ex. D.) The work performed included reviewing pleadings, client communications, filing pleadings, filing request for entry of default, conferring with opposing counsel, engaging in settlement discussions, trial prep, and attending trial for two days. (Id.) Therefore, the Court finds that both the hourly rate and hours spent litigating this action were reasonable and necessary.

As to the additional request for

\$1,600.00 for fees incurred bringing this present motion, the Court finds that two (2) hours for attending at most one hearing is unreasonable and excessive especially where the motion is unopposed. Thus, the Court will award a reduced amount of \$1,200.00 for the fee motion.

Based on the foregoing, the Court will award a reduced lodestar amount of \$28,348.00.

Costs

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ibid.*)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules Ct., rule 3.1700, subd. (a)(1).) A verified cost memorandum is "prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486.)

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was

served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4)." (Cal. Rules Ct., rule 3.1700, subd. (b)(1).)

Here, Plaintiff filed a Memorandum of Costs ("MOC") seeking \$1,892.81 in costs reflecting (1) \$435.00 in filing and motion fees; (2) \$1,035.00 in service of process fees; (3) \$97.34 in models, enlargements, and photocopies of exhibits; and (4) \$325.47 in electronic filing fees. These costs are expressly allowable under Code of Civil Procedure Section 1033.5, subdivisions (a)(1), (a)(4), (a)(13), and (a)(14). Also, the MOC is verified by Plaintiff's counsel of record, so it is prima facie evidence that the claimed costs are valid. Additionally, the time to object to the MOC via a noticed motion to tax and/or strike costs has passed. Specifically, the MOC was served on June 19, 2026, thus any motion to tax and/or strike costs was due on July 6, 2026. Therefore, the Court awards \$1,892.81 in costs.

III.

Conclusion

Accordingly, Plaintiff Milsam, LLC's Motion for Attorney's Fees and Costs is GRANTED in the reduced amount of \$30,240.81.

Plaintiff Milsam, LLC to give notice.